

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS----- X
BRANDON GANTT,

Plaintiff,

-against-

SUMMONS

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALICIA COMMISSO, Tax ID 954660, PAROLE
OFFICER PATRICE BRATHWAITE, Shield No. 2130,
and POLICE OFFICER JOHN DOES NUMBERS ONE
THROUGH TEN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Queens
County as the place of trial.----- X
To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 21, 2021

Yours, etc.

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Boulevard, Jamaica, NY, 11433

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

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BRANDON GANTT,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
ALICIA COMMISSO, Tax ID 954660, PAROLE
OFFICER PATRICE BRATHWAITE, Shield No. 2130,
POLICE OFFICER JOHN DOES NUMBERS ONE
THROUGH TEN, and PAROLE OFFICERS JOHN AND
JANE DOES NUMBERS ONE THROUGH TEN,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff BRANDON GANTT, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 14, 2017, at approximately 3:00 p.m., plaintiff BRANDON GANTT, while lawfully inside of 110-44 160th Street in Queens, New York, was subject to an unlawful search, false arrest, and false imprisonment by the defendant New York City police officers and parole officers. Based on the Officers false allegations, Plaintiff spent approximately 16 months unlawfully incarcerated, until he was released on or about March 8, 2019. Plaintiff was maliciously prosecuted and denied the right to due process and a fair trial until all charges against plaintiff were dismissed and sealed in their entirety on or about September 18, 2020. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff BRANDON GANTT is a resident of the state of New York.

3. NYPD POLICE OFFICER ALICIA COMMISSO, Tax ID 954660, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. NYPD POLICE OFFICER ALICIA COMMISSO, Tax ID 954660, was at all times relevant herein, assigned to the NYPD 113th Precinct.

5. NYPD POLICE OFFICER ALICIA COMMISSO, Tax ID 954660, is being sued in her individual and official capacity.

6. PAROLE OFFICER PATRICE BRATHWAITE, Shield No. 2130, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. PAROLE OFFICER PATRICE BRATHWAITE, Shield No. 2130, was at all times relevant herein, assigned to the Queens Division 1 Parole Unit.

8. PAROLE OFFICER PATRICE BRATHWAITE, Shield No. 2130, is being sued in her individual and official capacity.

9. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officer John Does Does #1-10 are being sued in their individual and official capacities.

11. New York City Parole Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

12. Police Officers John Does Does #1-10 are being sued in their individual and official capacities.

13. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

14. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a Police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible.

The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

15. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

16. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

17. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

18. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

19. On November 14, 2017, at approximately 3:00 p.m., plaintiff was lawfully present inside of 110-44 160th Street in Queens, New York, when the defendant police officers unlawfully handcuffed and falsely arrested plaintiff without probable cause, or any legal justification.

20. Plaintiff was living in a halfway house at 110-44 160th Street in Queens with multiple other recently released convicts.

21. Plaintiff was compliant with parole since his release, and checked in as required with Defendant Parole Officer Braithwaite.

22. Defendant Parole Officer Braithwaite concocted a false story, with malice, that Plaintiff was committing non-existent crimes in Binghamton, New York.

23. Defendant Braithwaite went so far as to make up a false Police Officer name in Binghamton, and claim she received information from him that Plaintiff was committing crimes in Binghamton, New York.

24. On November 14, 2017, at approximately 3:00 P.M. Defendant Braitwaite, Defendant Police Officer Alicia Commisso, and John and Jane Doe Defendants went to Plaintiffs halfway house.

25. The Defendants immediately handcuffed the Plaintiff, and placed him under arrest for non-existent crimes he allegedly committed in Binghamton.

26.

27. At no time relevant herein did plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse plaintiff of committing a crime or violating the law in any way.

28. Nevertheless, plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause.

29. At no point in time did plaintiff resist arrest in any way.

30. The Defendants then proceeded to search the entire basement of the halfway house, where Plaintiff's room was located.

31. Plaintiff's "bedroom" consisted of a mattress on the floor, with multiple other roommates living in the same room, with no door on the room, and only a sheet to cover the room opening.

32. No illegal contraband belonging to Plaintiff was found.

33. Plaintiff was then himself searched, and no contraband or anything illegal was found on him.

34. Plaintiff was transported to the 113th Precinct for processing.

35. Plaintiff was then transported to Queens County Central Bookings.

36. The defendant police officers and parole officers provided the District Attorney's Office with the false, misleading and/or incomplete information that plaintiff committed a crime.

37. Specifically, Defendant Braithwaite falsified a fake Police Officer, "John Brown," who she claimed was a Binghamton Police Officer, which served as the basis for the search and arrest of Plaintiff.

38. On November 15, 2017, based on Defendants false allegations, a Judge remanded Plaintiff on a parole hold.

39. The Defendants made sure that no amount of monetary bail could get Plaintiff released.

40. The Defendants then lied in the Grand Jury to secure an illegal indictment.

41. On January 9, 2019, an evidentiary hearing was held where the Defendants testified in front of the Honorable Judge Charles Lopresto in Queens Supreme Court.

42. After hearing testimony from the Defendants, Judge Lopresto found that, "The People have not met their burden of demonstrating the legality of the conduct of the parole officers conduct...." and ruled in favor of the Plaintiff.

43. Judge Lopresto found that Defendant Braithwaite acted fraudulently, knew there were no crimes in Binghamton, and knew that there was no Police Officer "John Brown."

44. Plaintiff was promptly released from incarceration on or about March 8, 2019, after spending sixteen months unlawfully incarcerated.

45. On or about September 18, 2020, the Queens County District Attorney's office dismissed and sealed all criminal charges against Plaintiff.

46. While Plaintiff was in jail illegally for sixteen months, he was assaulted numerous times by Correction Officers staff and other dangerous inmates.

47. Plaintiff was pepper sprayed at least five times while in custody.

48. Plaintiff lost two jobs as a result of the illegal detention, one at 42 Builders Construction Company, and the other at a Rug and Textile store.

49. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, falsely arresting and imprisoning, denying the right to due process and a fair trial, and maliciously prosecuting plaintiff.

50. The unlawful, search, seizure, false arrest and imprisonment, denial of the right to a fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, emotional trauma, and economic loss.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The individually named police officer and parole officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search plaintiff.

63. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

66. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Violation of Plaintiff's Fifth and Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein

68. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.

69. Defendants filled out false and misleading police reports, parole reports, testimony and forwarded them to prosecutors in the Queens County District Attorney's Office.

70. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.

71. In withholding/creating false evidence against plaintiff Brandon Gantt and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

72. As a result of the foregoing, plaintiff Brandon Gantt, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

74. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

75. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Brandon Gantt. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

78. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

79. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

80. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

82. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

86. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 85 with the same force and effect as if more fully set forth at length herein.

87. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

88. Defendants failed to intervene to prevent the unlawful conduct described herein.

89. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

90. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

91. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Malicious Prosecution

94. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 93 with the same force and effect as if more fully set forth at length herein.

95. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

96. Defendants commenced and continued a criminal proceeding against plaintiff.

97. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

98. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

99. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligence

103. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants owed a duty of care to Plaintiff.

105. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers and parole officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by

allowing him to be improperly searched and for there conduct which caused him to suffer serious physical harm while in custody.

106. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

107. All of the foregoing occurred without any fault or provocation by Plaintiff.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

JURY DEMAND

111. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 21, 2021

By: 
CAITLIN ROBIN AND ASSOCIATES PLLC
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ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN AND ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
April 21, 2021



CAITLIN ROBIN